

Court No. - 36

Case :- WRIT - C No. - 19946 of 2011

Petitioner :- Hafeez

Respondent :- State Of U.P. And Others

Petitioner Counsel :- O.P. Gupta

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

Shri M.N.Singh has filed his Parcha on behalf of respondent Nos. 2 and 3.

On prayer made by Sri Manoj Kumar Gupta, holding brief for M.N.Singh, learned counsel for the respondent nos.2 and 3, the case is directed to be put up as fresh on 25.4.2011 so as to enable him to obtain instructions particularly in regard to the following :

- (1) Whether any Provisional Assessment was made in respect of the petitioner ?
- (2) Whether copy of the Provisional Assessment was sent to the petitioner, and if so, the mode of such Communication
- (3) Whether the petitioner submitted any Objections against the Provisional Assessment ?
- (4) Whether the Objections, if any, submitted by the petitioner were decided by the concerned authority, and if so, copy of such Order ?
- (5) Whether the Order, if any, passed on the Objections of the petitioner against the Provisional Assessment was sent to the petitioner, and if so, mode of such Communication ?
- (6) Whether any Final Assessment Order was issued in respect of the petitioner, and if so, copy of such Order ?
- (7) Whether Final Assessment Order was communicated to the petitioner, and if so, the mode of such Communication ?

Order Date :- 6.4.2011

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Court No. - 36

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Respondent :- State Of U.P. And Others

Petitioner Counsel :- O.P. Gupta

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble S.C. Agarwal, J.

Shri Amol Ranjan holding brief of Shri M. N. Singh, learned counsel for respondent Nos. 2 and 3 states that certain instructions have been received by Shri M. N. Singh but certain further instructions are required.

On his prayer, the case is directed to be put up on 27.4.2011 as fresh.

Order Date :- 25.4.2011

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Court No. - 36

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Petitioner :- Hafeez

Respondent :- State Of U.P. And Others

Petitioner Counsel :- O.P. Gupta

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

As prayed, put up as fresh on 3.5.2011.

Order Date :- 27.4.2011

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Court No. - 37

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Petitioner :- Hafeez

Respondent :- State Of U.P. And Others

Petitioner Counsel :- O.P. Gupta

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Bharati Sapru, J. Sri

Sri M.N. Singh has received instructions. He may bring them on record by filing a counter affidavit within a week. Rejoinder affidavit may be filed thereafter within three days. Put up as a fresh case on 16th May, 2011.

Order Date :- 4.5.2011

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Court No. - 35

Case :- WRIT - C No. - 19946 of 2011

Petitioner :- Hafeez

Respondent :- State Of U.P. And Others

Petitioner Counsel :- O.P. Gupta

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Sudhir Agarwal, J.

1. We have heard Sri Om Prakash Gupta, learned counsel for the petitioner, learned Standing Counsel for respondent no. 1 and Sri M.N. Singh, learned counsel appearing for respondents no. 2 and 3.

2. On 06.04.2011 the respondents were required to seek instructions as to whether any provisional assessment (theft case) was made in respect of petitioner; whether provisional assessment was sent to petitioner and if so, the mode of such communication; whether petitioner submitted his objections; whether the objections were decided by concerned authority; if objections were decided the final assessment order was sent to petitioner before issuing demand notice and initiating recovery. The respondents have not filed any counter affidavit.

3. It is stated by Sri M.N. Singh that a provisional assessment was made on 20.08.2009 and was sent by post to petitioner. Since he did not file any reply a final assessment was made on 18.11.2009.

4. This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)** from paras 56 to 64 has

considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

5. In the present case we find that provisional assessment does not give the basis on which petitioner was assessed to pay Rs. 63,989/-. The assessing authority has not recorded its satisfaction that the petitioner has committed theft of electricity. In the instructions dated 26.04.2011 the concerned Executive Engineer has informed the counsel for respondents that provisional assessment was sent vide notice No. 2063 dated 20.08.2009 by post. The provisional assessment was sent by registered post and further there is nothing to show that it was received by petitioner.

6. In view of the fact that the instructions do not contain any positive reply with regard to method of service, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005 to give reply and object to the provisional assessment.

7. The writ petition is allowed. The impugned demand notice dated 19.05.2010 and recovery certificate are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar (supra)**.

Order Date :- 16.5.2011

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